

Track 1 — Chapter Build Pass

MPEP Chapter 1600 · Plant Patents

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: A Small, Rule-Heavy Niche

Plant patents are lightly tested but predictable — the exam tends to test the same handful of sharp rules (asexual reproduction, the tuber exclusion, the single claim, the filing-date-based term) rather than deep conceptual analysis.

Rule 1: What a Plant Patent Protects: Asexual Reproduction (§1601)

PLAIN ENGLISH

A plant patent protects a **distinct and new variety of plant** that has been **asexually reproduced** (e.g., by grafting, cuttings, budding — not by seeds). This includes cultivated sports, mutants, hybrids, and newly found seedlings, but tuber-propagated plants (e.g., potatoes) and plants found in an uncultivated state are excluded.

EXAMPLE

A horticulturist discovers a distinct new rose variety and reproduces it via cuttings (asexual reproduction) to confirm the traits are stable. This is a proper candidate for a plant patent. If the same rose could only be reproduced from seed (sexual reproduction), it would not qualify.

QUIZ

What reproduction method is required for a plant to qualify for plant patent protection?

- (A) Sexual reproduction (seeds) only
- (B) Asexual reproduction (e.g., cuttings, grafting, budding)
- (C) Either method works equally
- (D) No reproduction is required, only discovery

Rule 2: Tuber-Propagated Plants Are Excluded (§1601)

PLAIN ENGLISH

Plants propagated by tubers (like the potato) are specifically **excluded** from plant patent protection, because the part of the plant used for propagation (the tuber) is typically also the part sold/consumed, which the statute treats differently.

EXAMPLE

A newly developed potato variety, even if genuinely distinct and asexually propagated via its tubers, cannot receive a plant patent — tuber-propagated plants are carved out by statute regardless of how distinct or valuable the variety is.

QUIZ

Can a new, distinct potato variety receive a plant patent?

- (A) Yes, if asexually reproduced
- (B) No — tuber-propagated plants are specifically excluded
- (C) Yes, but only with a utility patent as well
- (D) Only if reproduced by seed instead

Rule 3: Plant Patents Have a Single Claim, Like Design Patents (§1605)

PLAIN ENGLISH

Similar to design patents, a plant patent application contains only **one claim**, in a standard form directed to the plant variety as shown and described. Plant patents also have a **20-year term from filing** (unlike design patents, which run from grant) and are not subject to maintenance fees.

EXAMPLE

A plant patent application for a new apple tree variety includes a single claim referencing the specification and drawing/photographs depicting the plant's distinguishing characteristics.

QUIZ

From what point is a plant patent's 20-year term measured?

- (A) The grant date, like design patents
- (B) The filing date, like utility patents
- (C) The date of first asexual reproduction
- (D) The date of discovery of the plant

Rule 4: Plant Patent Applications Require Only One Claim and Botanical/Descriptive Detail (§1605)

PLAIN ENGLISH

Because a plant can't always be adequately described in words alone, plant patent applications typically require a detailed botanical description (color, using recognized color charts where relevant) plus a drawing or photograph showing the plant's distinguishing characteristics — this substitutes for some of the structural specificity a utility claim would otherwise need.

EXAMPLE

An application for a new flowering shrub variety includes detailed color descriptions referencing a standard horticultural color chart, plus photographs showing the plant's distinctive bloom pattern, since verbal description alone often can't fully capture such traits.

QUIZ

Why do plant patent applications typically include detailed botanical descriptions and drawings/photographs?

- (A) Because verbal claim language alone often can't adequately capture a plant's distinguishing traits
- (B) Because plant patents require no written specification at all
- (C) Because they replace the need for a claim
- (D) Because they are required only for design patents

Rule 5: Distinctness Requirement (§1605)

PLAIN ENGLISH

A plant variety must be **distinct** from existing, known varieties — showing characteristics (color, habit, productivity, disease resistance, etc.) that clearly set it apart — not merely a trivial or cosmetic variation. This plays a role somewhat analogous to novelty/nonobviousness in utility practice, adapted to plant characteristics.

EXAMPLE

A new plant variety showing genuinely distinct disease resistance not found in any known related variety would satisfy distinctness. A variety differing only in an utterly trivial, cosmetically insignificant way from a known variety would likely fail this requirement.

QUIZ

What must a new plant variety show to satisfy the distinctness requirement?

- (A) Any difference at all from known varieties, however trivial
 - (B) Characteristics that clearly and meaningfully set it apart from existing known varieties
 - (C) That it was asexually reproduced only once
 - (D) That it is tuber-propagated
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A newly discovered plant variety can only be reproduced from seed, not through cuttings or grafting. Does it qualify for a plant patent?

- (A) Yes, discovery alone is sufficient
- (B) No — asexual reproduction is required
- (C) Yes, if it's also distinct
- (D) Only if tuber-propagated

2. Can a genuinely new and distinct potato variety receive a plant patent?

- (A) Yes, if asexually reproduced via tubers
- (B) No — tuber-propagated plants are excluded by statute
- (C) Yes, automatically
- (D) Only with a design patent instead

3. How many claims does a plant patent application contain?

- (A) One
- (B) As many as needed
- (C) Exactly three
- (D) None are required

4. From what date is a plant patent's 20-year term measured?

- (A) Grant date
- (B) Filing date
- (C) Date of discovery
- (D) Date of first sale

5. True or False: A trivial, cosmetically insignificant difference from a known plant variety is sufficient to satisfy the distinctness requirement.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- Plant patents require **asexual reproduction** (cuttings, grafting, budding) — not seeds.
- **Tuber-propagated plants** (e.g., potatoes) are specifically excluded by statute.
- Plant patents have **one claim** (like design patents) but a **20-year term from filing** (like utility patents) — don't mix up the term rule with design patents.
- Detailed botanical description + drawing/photograph substitutes for some of the specificity a utility claim would otherwise provide.
- **Distinctness** requires a meaningful difference from known varieties — not a trivial/cosmetic one.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: What a Plant Patent Protects: Asexual Reproduction (§1601)

What reproduction method is required for a plant to qualify for plant patent protection?

Answer: B

Asexual reproduction is the core requirement — it demonstrates the new variety's distinct traits are stable and reproducible, which sexual (seed) reproduction typically doesn't guarantee.

Rule 2: Tuber-Propagated Plants Are Excluded (§1601)

Can a new, distinct potato variety receive a plant patent?

Answer: B

Tuber-propagated plants are a specific statutory exclusion, regardless of how distinct the new variety otherwise is — a frequently tested carve-out.

Rule 3: Plant Patents Have a Single Claim, Like Design Patents (§1605)

From what point is a plant patent's 20-year term measured?

Answer: B

Plant patents follow the utility-patent convention of measuring term from filing (20 years), unlike design patents, which measure from grant — a useful contrast to keep straight.

Rule 4: Plant Patent Applications Require Only One Claim and Botanical/Descriptive Detail (§1605)

Why do plant patent applications typically include detailed botanical descriptions and drawings/photographs?

Answer: A

Detailed botanical description and visual documentation help capture distinguishing traits that are often difficult to convey through claim language alone, given the single-claim format.

Rule 5: Distinctness Requirement (§1605)

What must a new plant variety show to satisfy the distinctness requirement?

Answer: B

Distinctness requires a meaningful difference, not a trivial or cosmetic one — analogous in spirit to how novelty/nonobviousness function in utility practice, but tailored to plant traits.

Chapter Close-Out Quiz

1. (B)

Asexual reproduction is a core, non-negotiable requirement for plant patent eligibility — seed-only reproduction doesn't qualify.

2. (B)

Tuber-propagated plants, including potatoes, are specifically excluded from plant patent protection by statute, regardless of distinctness.

3. (A)

Like design patents, plant patents are limited to a single claim.

4. (B)

Plant patents measure their 20-year term from the filing date, following the utility-patent convention — unlike design patents, which run from grant.

5. (B) False

Distinctness requires a meaningful, non-trivial difference from known varieties — cosmetic-only variation doesn't satisfy the requirement.